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Date 26.03.2014
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Sheet 1
Feuille

Anmelde-Nr:
Application No: 08 867 917.0
Demande n°:

The examination is being carried out on the **following application documents**

Description, Pages

1-7, 9, 11-21	filed with entry into the regional phase before the EPO	
8, 10	received on 08-09-2010 with letter of	08-09-2010

Claims, Numbers

1-8	filed on	15-11-2011
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Drawings, Sheets

1-12	filed with entry into the regional phase before the EPO
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1. Non-unity

It is still considered that the present application lacks unity (Art. 82 EPC). The following inventions were identified:

1. claims: 1-2(partial), 4 (partial), 5, 6-7 (partial), 8: Combination of carotenoid and sphingolipid for the management of body fat and of neutral lipids
2. claims: 1-2 (partial), 3, 4 (partial), 6-7 (partial): Combination of carotenoid and flavonoid or derivative thereof for the management of body fat and of neutral lipids

The reason for this lack of unity is that carotenoids, especially beta-cryptoxanthin, are known to be effective in the management of body fat and neutral lipids, see e.g., WO 2005/112904 and JP 2006/ 219388 cited in the International phase. Thus, there is no common inventive concept between the two combinations of actives, which results in lack of unity (Art. 82 EPC). This remains true even if the claimed synergy between the compounds were to be considered.

In accordance with Rule 164(1) EPC the supplementary search report has been drawn up for those parts of the application which relate to the invention, or group of inventions, first mentioned in the claims, namely based on mixture 1: carotenoid and sphingolipid.

The applicant is kindly requested to limit the application to the invention covered by the European supplementary search report.

2. Clarity (Art. 84 EPC)

In claim 8, squeezing and treating by an enzyme are separate alternatives of the method. The word "or" between those two alternatives is therefore missing.

3. Novelty and inventive step (Invention 1 only)

3.1 Reference is made to the following documents:

- D1 JP 2006 083151 A (ORIZA YUKA KK) 30 March 2006
- D2 WO 2004/112776 A2 (ADVANCED BIONUTRITION EUROP LT [GB]) 29 December 2004
- D3 WO 2006/068041 A1 (OKAYASU SHOTEN CO LTD [JP]) 29 June 2006
- D4 WO 2007/116981 A1 (SNOW BRAND MILK PROD CO LTD [JP]) 18 October 2007
- D5 WO 2005/112904 A1 (ARKRAY, INC.) 1 December 2005

D5 was cited by the International Search Authority

3.2 The presence of a synergy between the two compounds carotenoid and sphingolipid has only been demonstrated by the Applicant (see the examples in the present application) when the carotenoid is beta-cryptoxanthin and the sphingolipids are from citrus (see especially example 1). Thus, that synergy, which provides inventive step over documents, is restricted to these compounds.

For that reason, it is considered that the subject-matter of present claims 1, 4, 5, 6, 7, lacks an inventive step in light of documents D3 or D4, and D5, which teach that beta cryptoxanthin (D5) and ceramides (D2) or milk phospholipids (D4) are anti-obesity agents.

3.3 The Applicant is invited to comment on the documents cited by the Third Party on 19.08.2011. Each of these mentions compositions which have a slimming or an anti-obesity effect, that comprise citrus fruit (thus, citrus carotenoid and sphingolipid). Thus, each of these documents compromises the novelty and inventive step of all claims relating to invention 1 (claims 1, 2, 4-7).

3.4 Present claim 8 is worded in a way that makes it **not** novel vs. preparing any citrus juice, for instance by squeezing an orange or lemon in the kitchen. Lastly, none of its options can be inventive vs. the preparation of any fruit extract.

4. The applicant is kindly invited to file a new set of claims and an adapted description taking into account the objections above. The following is to be observed:

4.1 The attention of the applicant is drawn to the fact that the application may not be amended in such a way that it contains subject-matter which extends beyond the content of the application as filed (Article 123(2) EPC).

4.2 The applicant is requested to clearly identify the amendments carried out, irrespective of whether they concern amendments by addition, replacement or deletion, and to indicate the passages of the application as filed on which these amendments are based (R.137 (4) EPC).